



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

OCT 21 2001

400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 13059
(FIRST REVISION)

EXPIRATION DATE: August 31, 2004

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: GE Plastics
Burkville, Alabama

(See Appendix A for a list of additional grantees)

2. PURPOSE AND LIMITATION:

a. This exemption authorizes the use of a video camera and monitor to observe the loading and/or unloading operations of an elevated temperature material from a remote control room instead of personnel remaining within 7.62 meters (25 feet) of the cargo tank motor vehicles. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.

b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.

3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 177.834(i)(3) in that the loading or unloading of a cargo tank without the attendance of a qualified person within 25 feet of the cargo tank is not authorized, except as specified herein.
5. BASIS: This exemption is based on the application of GE Plastics dated June 4, 2002, submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Elevated temperature liquid, n.o.s.	9	UN3257	III

7. SAFETY CONTROL MEASURES:

a. PACKAGING - The hazardous material described in paragraph 6 must be transported in a cargo tank motor vehicle authorized by § 173.247(b).

b. OPERATIONAL CONTROLS -

(1) Each cargo tank must be loaded by qualified persons, who are familiar with the product and with the proper procedures for its safe handling.

(2) The provisions of § 177.834 (i) must be complied with except that paragraph (3) is replaced with the following:

A designated Chemical Operator must observe all loading/unloading operations by means of a video monitor located in the facility Control Room. The loading and/or unloading system must be operated in accordance with the following conditions:

(i) The camera must be mounted 15 to 20 feet distant from the cargo tank motor vehicle, so as to provide an unobstructed view of all equipment involved in loading/unloading operations of the cargo tank. This will include domes, hose connections and safety relief devices.

(ii) Upon loss of video, loading/unloading operations must be immediately terminated. Shut-off valves operable from the Control Room must be provided.

(iii) In the event of a remote system failure, the Chemical Operator must immediately resume attending loading/unloading operations from within 7.62 meters (25-feet) of the cargo tank.

(iv) A spill containment area must be provided which is capable of holding 500 gallons of liquid tar.

8. SPECIAL PROVISIONS:

- a. A current copy of this exemption must be displayed in the Control Room at this facility.
- b. The Chemical Operator must visually inspect each cargo tank motor vehicle after it is loaded, prior to departure, in accordance with facility policy.
- c. Written procedures for training of the Chemical Operators, for their adherence to standard operating procedures, and for inspection and maintenance of video equipment and of the shut-off valve/remote control system must be carried out as described in the application for this exemption, on file with the Office of Hazardous Materials Exemptions and Approvals. GE Plastics must maintain a list of qualified Chemical Operators at each facility covered by this exemption. A copy of this list must be available for inspection during normal working hours.
- d. This exemption applies only to GE Plastics plant sites at Mt. Vernon, IN and Burkville, AL.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: None other than as required by the HMR.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

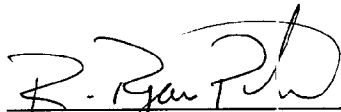
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



fr Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

OCT 21 2002
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: PTO/AM